

China Food Delivery

Not Just a Soft Draft: Disclosure Rules Could Cool the Food Delivery Subsidy War

SAMR's draft food-delivery rules reduce Meituan's downside tail, but they do not yet turn regulatory relief into a positive earnings catalyst, in our view. We reiterate Neutral on Meituan with a Dec-26 PT of HK\$85, making no changes to our estimates considering the draft's scenario framework. The call rests on one load-bearing assumption: SAMR's funding-source language has real behavioral bite and limits capital-funded subsidy attacks on food delivery. If that premise holds, our reading of the draft lowers the probability of our bear case (Table 4), in which prolonged capital-funded competition weakens the delivery profit pool and Meituan's fair value falls to around HK\$51. If the premise does not hold, the rules become disclosure without much strategic value. We do not use the draft alone as the basis to change our estimates, but we see it as a near-term sentiment stabilizer ahead of the final text due after the July 17, 2026 consultation deadline, and considering 3Q26 subsidy evidence.

- The market appears to be pricing the absence of explicit subsidy caps as evidence that the draft lacks bite. In our view, that misreads the mechanism. The draft does not need to cap every campaign to matter; it needs to make the most aggressive campaigns slower, more visible, and easier to challenge. Seven-day pre-disclosure reduces surprise value, while funding-source reporting and competitive-impact self-assessment create an evidentiary trail for regulators, competitors, merchants, riders, and media to scrutinize extreme promotions.
- The relative stock implication favors Meituan on this specific catalyst, although not enough for us to prefer it outright over Alibaba (9988 HK/BABA US, OW) at the portfolio level. Meituan's advantages lie in order density, routing efficiency, merchant coverage, rider management, and consumer habit formation. If the rules shift competition away from fast capital-funded cash subsidy toward operating execution, the battleground moves back onto Meituan's terrain.
- We would change our view if the final rules explicitly allow group-level operating profit to satisfy the funding-source requirement, if platforms keep running aggressive disclosed campaigns without regulatory response, or if Alibaba redirects the fight into higher-AOV use cases where Meituan's profit pool is more exposed. The clearest falsification test is 3Q26 subsidy intensity: if reporting and industry checks show subsidies remain near 1H26 levels with no moderation, our interpretation weakens. Conversely, final wording that preserves Provision 3, first disclosures that force campaign economics into view, and evidence of easing subsidy intensity would support a shift of probability weight from the HKD51 bear case toward the HKD92 base and the HKD128 bull case.

JPM view

The market is likely to read the draft as soft because it lacks hard caps. We think that misses the point. The draft does not try to regulate subsidies mainly by setting a price ceiling, in our view. It regulates them by making aggressive campaigns slower, more visible, and easier to challenge. In food delivery, that is meaningful. The most damaging form of competition

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is not ordinary promotion; it is fast, capital-funded subsidy escalation designed to change consumer and merchant behavior before the incumbent can respond. Seven-day disclosure and funding-source reporting directly target that mechanism.

Our view is therefore simple: disclosure, funding-source scrutiny, and competitive-impact self-assessment are the enforcement mechanism.

Stock implication: The draft is likely to reduce bear case probability of Meituan but this is not a reason to flip Meituan over Alibaba outright. Alibaba remains a broader AI/cloud/platform optionality story. The point is narrower: on this specific food-delivery catalyst, the relative value setup favors Meituan more than the market is likely to price.

What has changed?

SAMR released the draft *Food Delivery Platform Subsidy Conduct Rules* for public consultation on June 17, with comments open through July 17, 2026. The draft is framed under China's anti-monopoly, anti-unfair competition, price, e-commerce, and food-safety regimes.

The draft has three elements that matter most for investors:

Table 1: Key details in Food Delivery Platform Subsidy Conduct Rules

Rule element	What it requires	Why it matters
Funding-source discipline	Subsidies should be funded from own operating profit, not capital advantage	Limits the ability of challengers to fund food-delivery losses with group-level capital
Seven-day pre-disclosure	Platforms must disclose campaigns before launch	Reduces speed and surprise in subsidy wars
Competitive-impact reporting	Platforms must disclose campaign design, funding source, and competitive impact	Creates a written record that can later support enforcement

Source: SAMR ([link](#)), J.P. Morgan.

The timing also matters. The draft lands during the 618 promotional window, exactly when renewed subsidy escalation would have tested the bear case for Meituan.

Why disclosure is enforcement

The first instinct is that “no caps” means “no bite.” We disagree.

The disclosure regime changes the economics of subsidy competition in three ways.

First, it slows the game down. Food-delivery subsidy wars are reactive. A challenger launches a promotion, the incumbent responds, and the market tests how far each side is willing to go. A seven-day public notice window reduces the value of surprise and weakens the tit-for-tat dynamic.

Second, it creates evidence. Funding-source disclosure and competitive-impact self-assessment force platforms to write down the facts that regulators would later need to evaluate whether a campaign relied on capital advantage or unfair competition.

Third, it raises the cost of aggression before penalties arrive. A campaign that must be disclosed in advance is easier for competitors, merchants, riders, media, and regulators to monitor. That reputational and enforcement risk should reduce the willingness to run extreme campaigns.

This is why we view the draft as more binding than it appears. It does not need to ban every subsidy to change platform behavior. It only needs to make the most aggressive campaigns harder to launch, justify, and repeat.

The key interpretive issue: segment profit or group profit?

Provision 3 is the load-bearing clause, in our view. It requires subsidies to come from own operating profit rather than capital advantage.

The investment conclusion depends on how “own operating profit” is interpreted.

Table 2: Possible interpretations for ‘own operating profit’ term

Interpretation	Implication
Segment-level or near-segment-level profit	Strongly favors Meituan; challengers cannot easily fund delivery losses with group capital
Group-level profit	Weakens the asymmetry; Alibaba could argue that group profitability supports continued investment
Vague final wording	Keeps the issue alive; enforcement behavior becomes more important than the text itself

Source: J.P. Morgan.

Our base interpretation is that the “capital advantage” language is intended to limit cross-subsidy and balance-sheet-funded share attacks. That is why the rule matters for Meituan. But this is also the biggest risk to our view. If the final text explicitly allows group-level profit to satisfy the requirement, the strategic benefit to Meituan would be materially smaller.

How the rule changes competition

The draft shifts the battleground from cash subsidy toward operating quality.

Table 3: Changes in key dimensions post the SAMR draft

Dimension	Before the draft	After the draft	Relative beneficiary
Campaign speed	Flash promotions and rapid response	Seven-day pre-disclosure	Incumbent with scale and density
Funding source	Group capital can support delivery losses	Own operating profit becomes more important	Meituan
Competitive lever	Cash subsidy and user incentives	Fulfillment, routing, merchant depth, reliability	Meituan
Merchant/rider economics	More room for cost shifting	Cost-shifting restrictions	Sector-wide cost floor rises
Profit pool	Higher risk of multi-quarter loss-funded war	Lower probability of negative-profit tail	Meituan structurally

Source: J.P. Morgan.

This does not mean food-delivery competition goes away. It means the easiest way to attack the incumbent, using capital to subsidize losses, becomes more expensive and more visible. Competition can still move into fulfillment quality, merchant selection, membership benefits, logistics, and high-AOV use cases. But those are precisely the areas where scale, density, and operating capability matter more than headline cash burn.

Industry implications

Competition: less cash burn, more operating execution

The rule reduces the value of capital-funded subsidy as a competitive shortcut. A challenger can still invest, but it becomes harder to disguise a share-buying campaign as ordinary promotion if the campaign must be disclosed in advance, justified publicly, and linked to a compliant funding source.

That matters because Meituan’s moat is operational rather than financial. Its advantage sits in order density, routing efficiency, merchant coverage, rider network management, and consumer habit formation. If the competitive game moves back toward these variables, Meituan’s relative position improves.

Operations: subsidy relief, but a higher cost floor

The draft should reduce the probability of extreme promotional escalation. At the same time, it reinforces a higher sector cost floor. Rules against forcing merchants or riders to bear subsidy costs, combined with rider social-insurance pressure, make it harder for platforms to offset promotion through cost shifting.

For Meituan, this is a mixed but net constructive outcome. The subsidy line should face less tail risk, but delivery costs are unlikely to return cleanly to pre-2025 levels. Our model already assumes rider cost per order moving from around RMB5.0 toward RMB5.2–5.3. The draft reinforces that direction.

Profit pool: the floor improves more than the ceiling

We retain our published industry profit-pool framework. In our base case, Meituan captures all or almost all positive food-delivery industry profit. In the fragmented bear case, the profit pool can turn negative.

The draft could reduce the probability of that negative-pool scenario. It does not restore the industry to a 2024-style profit ceiling. Redirected competition into service quality, logistics, and merchant support will still cost money. The more important change is that sustained loss-funded subsidy competition becomes harder to justify.

Stock implications

Meituan: the strategic beneficiary

Meituan is the stock most helped by the strategic logic of the draft. The rule reduces the probability of a prolonged capital-funded attack on its core delivery profit pool. It also arrives at the moment when subsidy reacceleration would have been the clearest bear-case trigger.

The caveat is that Meituan's own promotional toolkit is also constrained. It cannot rely on forced participation, below-cost pricing, discriminatory treatment, or surprise campaigns. The draft also does not directly stop Alibaba from attacking high-AOV delivery use cases, which remains our live falsification risk.

Still, the balance is favorable. The rule shifts the fight from capital subsidy back toward operating efficiency. That is Meituan's terrain.

We maintain Neutral. The draft does not yet justify an estimate change, but it modestly improves near term investor sentiment.

Alibaba: near-term relief, but less instant-commerce optionality

For Alibaba, the P&L effect is positive. Less food-delivery subsidy intensity should reduce losses in Taobao Instant Commerce / Ele.me.

But the strategic effect is more complicated. Part of the Alibaba bull case assumes instant commerce can become a traffic-acquisition and user-frequency engine for Taobao. If the rule limits capital-funded delivery subsidies, that option becomes less valuable. Alibaba can still pursue the opportunity, but it may need to rely more on operating execution and less on balance-sheet-funded user acquisition. This is why the rule taxes the optionality leg, even if it helps near-term losses.

The key ambiguity is again Provision 3. If group-level profit is enough to satisfy the rule, Alibaba's flexibility remains much greater. If segment-level economics matter, the instant-commerce push becomes more constrained.

JD: cleanest P&L relief, weaker strategic durability

JD has the cleanest near-term earnings read-through. Its food-delivery entry has been subsidy-intensive, and the draft gives management both regulatory cover and economic reason to rationalize spend.

That explains why the consensus trade favored JD. But the strategic read is less favorable. JD's delivery push is the most dependent on capital-funded subsidy among the three platforms. If Provision 3 is enforced with real bite, the durability of JD's food-delivery position becomes harder to underwrite.

The lasting impact of JD's entry may therefore be less about permanent share gain and more about a higher sector cost floor, especially on rider wages and fulfillment standards.

Valuation: scenario skew improves, estimates unchanged

We keep ratings and estimates unchanged. The draft is still open for comment, and the final wording will matter.

Our Meituan scenario set remains:

Table 4: Meituan scenario analysis

Scenario	PT	Description
Bull	Around HKD128	Rationalized competition, stronger profit-pool recovery
Base	Around HKD92	Subsidy pressure eases, but cost floor remains higher
Bear	Around HKD51	Prolonged capital-funded competition and weaker delivery profit pool

Source: J.P. Morgan.

The draft does not change the model mechanically today. It changes the probability distribution. A credible shift in the “binding vs cosmetic” debate would justify moving some weight out of the bear case and into the base and bull cases. Illustratively, moving around ten points of probability weight away from the bear case would lift our blended PT into the low-to-mid HKD90s.

That is a continuation of our prior framework, not a new valuation thesis. Bear-case probability had already declined from our April deep dive to the 1Q26 results update. The SAMR draft reinforces that direction but does not complete the argument. We would wait for final text and 3Q26 subsidy evidence before making formal estimate changes.

What could make us wrong?

Final wording allows group-level profit

This is the most important risk. If the final rule explicitly allows platforms to fund subsidies from group-level operating profit, the asymmetry weakens. Alibaba would retain greater flexibility to support food-delivery investment, and Meituan’s strategic benefit would be smaller.

Enforcement is soft

The draft could become a disclosure exercise without meaningful behavioral impact. If platforms continue aggressive subsidy campaigns after making formal disclosures, and regulators do not respond, the rule would be less binding than we expect.

Alibaba shifts into high-AOV core attack

The rule targets subsidies, below-cost pricing, and cost shifting. It does not directly prevent competition through fulfillment quality, selection, membership, or logistics. Alibaba could still attack higher-AOV use cases where Meituan’s profit pool is more exposed.

3Q26 data show no easing

The clearest falsification test is actual subsidy intensity. If 3Q26 reporting and industry checks show per-order subsidies continuing near 1H26 levels with no evidence of moderation, our interpretation would need to be revisited.

What to watch next

The next catalysts include:

Table 5: Key catalysts to watch

Date / evidence	Why it matters
Final SAMR text after July 17, 2026	Determines whether Provision 3 keeps real bite
First seven-day campaign disclosures	Shows whether platforms must reveal funding source and campaign mechanics
3Q26 results and management commentary	Tests whether subsidy intensity is actually easing
Alibaba instant-commerce strategy	Determines whether competition shifts from broad subsidy to high-AOV core attack
JD reinvestment behavior	Tests whether subsidy savings flow to earnings or are redirected into new spending

Source: J.P. Morgan.

The draft is not the end of the debate. It is the start of a more observable phase. If the final rules preserve the funding-source language and the first disclosures force platforms to explain campaign economics, the market may need to revisit the relative value setup across Meituan, Alibaba, and JD.

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Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage Oct 12, 2018. All share prices are as of market close on the previous business day.

Date	Rating	Price (HK\$)	Price Target (HK\$)
27-Aug-23	OW	132.20	195
30-Nov-23	N	90.45	100
05-Feb-24	N	63.25	67
24-Mar-24	OW	88.25	110
07-Jun-24	OW	112.70	130
29-Aug-24	OW	102.80	140
01-Dec-24	OW	168.70	200
23-Mar-25	OW	167.60	190
22-Apr-25	OW	136.50	165
27-May-25	OW	129.40	160
10-Jul-25	OW	119.20	150
28-Aug-25	N	116.30	105
21-Oct-25	N	96.65	100
01-Dec-25	N	102.50	95
27-Mar-26	N	86.70	85

Alibaba Group Holding Limited (9988.HK, 9988 HK) Price Chart



Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage May 11, 2021. All share prices are as of market close on the previous business day.

Date	Rating	Price (HK\$)	Price Target (HK\$)
11-Aug-23	OW	94.30	145
17-Nov-23	OW	81.35	120
09-Jan-24	OW	70.35	105
08-Feb-24	OW	74.90	100
09-Apr-24	OW	70.40	95
16-Aug-24	OW	76.40	106
09-Oct-24	OW	104.50	120
26-Nov-24	OW	81.95	117
09-Jan-25	OW	80.90	120
21-Feb-25	OW	120.90	165
10-Jul-25	OW	102.90	135
31-Aug-25	OW	115.70	165
01-Oct-25	OW	177.00	240
09-Oct-25	OW	177.60	235
26-Nov-25	OW	157.80	225
09-Jan-26	OW	142.60	210
20-Mar-26	OW	132.00	200
08-Apr-26	OW	118.50	195
14-May-26	OW	132.80	200

Alibaba Group Holding Limited (BABA) (BABA, BABA US) Price Chart



Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage Oct 29, 2014. All share prices are as of market close on the previous business day.

Date	Rating	Price (\$)	Price Target (\$)
11-Aug-23	OW	99.21	150
17-Nov-23	OW	79.11	125
09-Jan-24	OW	72.88	110
08-Feb-24	OW	73.64	105
09-Apr-24	OW	71.71	100
16-Aug-24	OW	79.54	108
09-Oct-24	OW	109.68	125
26-Nov-24	OW	85.58	120
09-Jan-25	OW	83.69	125
21-Feb-25	OW	135.97	170
10-Jul-25	OW	103.83	140
31-Aug-25	OW	135.00	170
01-Oct-25	OW	178.73	245
09-Oct-25	OW	181.12	240
26-Nov-25	OW	157.01	230
09-Jan-26	OW	154.47	215
20-Mar-26	OW	124.90	205
08-Apr-26	OW	119.72	200
14-May-26	OW	145.81	205

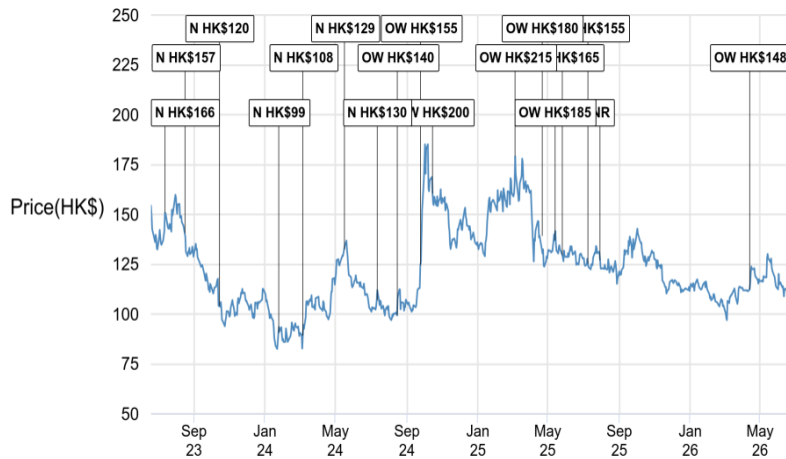
JD.com, Inc. (JD, JD US) Price Chart



Source: Bloomberg Finance L.P. and J.P. Morgan; price data adjusted for stock splits and dividends.
Initiated coverage Apr 26, 2015. All share prices are as of market close on the previous business day.

Date	Rating	Price (\$)	Price Target (\$)
14-Jul-23	N	39.36	43
17-Aug-23	N	34.88	40
15-Oct-23	N	27.05	31
16-Nov-23	N	28.59	30
25-Jan-24	N	23.60	25
07-Mar-24	N	24.91	28
17-May-24	N	34.27	33
16-Aug-24	OW	27.00	36
25-Sep-24	OW	33.90	40
16-Oct-24	OW	40.16	50
07-Mar-25	OW	43.92	55
22-Apr-25	OW	34.06	46
14-May-25	OW	37.25	48
27-May-25	OW	33.35	42
10-Jul-25	OW	31.60	40
31-Jul-25	NR	31.75	--
14-Apr-26	OW	28.94	38

JD.Com, Inc. (9618) (9618.HK, 9618 HK) Price Chart



Date	Rating	Price (HK\$)	Price Target (HK\$)
14-Jul-23	N	150.70	166
17-Aug-23	N	140.60	157
15-Oct-23	N	104.20	120
25-Jan-24	N	90.40	99
07-Mar-24	N	89.20	108
17-May-24	N	132.40	129
12-Jul-24	N	106.80	130
16-Aug-24	OW	99.35	140
25-Sep-24	OW	124.60	155
16-Oct-24	OW	160.40	200
07-Mar-25	OW	179.00	215
22-Apr-25	OW	139.20	180
14-May-25	OW	137.00	185
27-May-25	OW	129.60	165
10-Jul-25	OW	125.30	155
31-Jul-25	NR	126.90	--
14-Apr-26	OW	112.30	148

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